

26STLC03781 26STLC03781

County: los-angeles

Division: Civil Law and Motion

Department: 25

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Case Number: 26STLC03781 Hearing Date: August 25, 2026 Dept: 25

HEARING DATE: Tues., August 25, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Le, et al. v. Thurston COMPL.

FILED: 06-05-26

CASE NUMBER: 25STLC03781

NOTICE: OK

PROCEEDINGS: MOTION

FOR ORDER GRANTING LEAVE TO AMEND COMPLAINT

MOVING PARTY: Plaintiffs

Linh Le and Bao Nguyen

RESP. PARTY: None

MOTION FOR LEAVE TO AMEND COMPLAINT

(Code Civ. Proc., § 473(a))

TENTATIVE RULING:

The Court DENIES

WITHOUT PREJUDICE Linh Le and Bao Nguyen's motion for leave to amend the complaint.

Le

and Nguyen are to give notice.

SERVICE:

[X] Proof of Service Timely Filed (CRC,
rule 3.1300) OK

[X] Correct Address (CCP §§ 1013, 1013a)
OK

[X] 16/21
Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of August 21, 2026 [] Late [X]
None

REPLY: None
filed as of August 21, 2026 [] Late [X]
None

ANALYSIS:

Linh Le
and Bao Nguyen filed a complaint seeking \$25,000 in damages from Irma Thurston,
trustee of the Clifford W. Thurston 2007 Family Trust. Thurston answered. Le and Nguyen now move for leave to file a
first amended complaint that increases the amount of damages sought to \$35,000.

Code of
Civil Procedure section 473, subdivision (a) authorizes a court to allow a
party to file an amended pleading "in furtherance of justice." If there is no prejudice to the opposing
party, courts allow amendments liberally.
(Ventura v. ABM Industries, Inc. (2013) 212 Cal.App.4th
258, 268.)

A motion for leave to amend a pleading
must also comply with California Rules of Court rule 3.1324, which requires a motion to amend to include
a copy of the proposed amended pleading and "state what allegations in the
previous pleading are proposed to be [deleted and/or added], if any, and where,
by page, paragraph, and line number, the [deleted and/or additional]

allegations are located.” (Id., rule 3.1324(a).) The motion must also include a separate declaration specifying (1) the effect of the amendment, (2) why the amendment is necessary and proper, (3) when the facts giving rise to the amended allegations were discovered, and (4) the reasons why the request for amendment was not made earlier. (Id., rule 3.1324(b).)

All else aside, the proposed first amended complaint indicates incorrectly that this action is unlimited. The only apparent change between the complaint and first amended complaint is a revision to the demand, from \$25,000 to \$35,000. But that leaves the matter within the Court’s limited jurisdiction. (Code Civ. Proc., § 85, subd. (a).)

Regardless of that error, the motion and declaration do not satisfy California Rules of Court rule 3.1324. The motion attaches a proposed first amended complaint but does not state exactly where the changes are to be made “by page, paragraph, and line number.” (If there are any, beyond an attempt to increase the amount in controversy.) Additionally, the declaration from Le and Nguyen’s counsel does not satisfy subdivision (b), because it does not state the effect of the amendment, why the amendment is necessary and proper, when exactly the facts giving rise to the amendment were discovered, and why the request was not made earlier. The declaration only states that the increased damages were discovered “after further investigation and discovery disclosed additional damages” and that the delay was due to counsel’s “mistake, inadvertence, surprise, and/or excusable neglect.” There is no supporting evidence or further specificity regarding these statements.

The Court therefore DENIES WITHOUT PREJUDICE Le and Nguyen’s motion for leave to amend the complaint.

Le and Nguyen are to give notice.